FILL OUT ALL SECTIONS OF THIS FORM BEFORE FILING WITH THE COUNTY CLERK AND FIDUCIARY CLERK/COURT – MUST BE COMPLETED WITHIN 30 DAYS OF SALE

If this is an E-Filed case, upload this form to NYSCEF as a "Foreclosure Action Surplus Monies Form"

FORECLOSURE ACTION SURPLUS MONIES FORM

SUPREME COURT/COUNTY COURT OF THE STATE OF NEW YORK:

COUNTY OF Bronx

BANK OF NEW YORK MELLON TRUST COMPANY, N.A. AS TRUSTEE FOR MORTGAGEE ASSETS MANAGEMENT SERIES I TRUST

Plaintiff,

-against-

See 1 in Addendum

MILLER, KEVIN

Defendant.

Index No. 35216/2018E

MORTGAGED PROPERTY:
4067 BAYCHESTER AVENUE
BRONX, NY 10466

COUNTY: Bronx
SBL #: Block 4981, Lot 159
Sale Date: March 23,2026

A. To be completed by the Referee

1. Final Judgment Amount per Judgment: $ 340,866.19
2. Adjusted Judgment Amount (Upset Price): $ 517,586.32
   (This is the total amount due to the bank after post-sale disbursements, fees, taxes, utilities, etc.)
3. Sale Price: $ 517586.32
   (To calculate if there is a surplus, subtract the higher of line 1 or line 2 from line 3 and enter any surplus on line 4)
4. Surplus Amount (enter $0.00 if no surplus) $ 0
   ***If there are surplus funds, attach proof/receipt that the surplus amount was deposited with the Treasurer, Comptroller, Commissioner of Finance, Clerk of Court, etc.*

Referee's TOTAL compensation awarded/fees earned in this matter: $ 750.00

Referee Name: Frank D. Lombardi, Esq. Telephone: (845) 519-0430
Address: 13 Maple Hill Drive, Mahopac, NY 10541
Email: FLOMBARDIESQ@aol.com Signature/Date: 3/23/26

**If plaintiff is also the purchaser, complete both B. and C.*

B. To be completed by Plaintiff's Rep.

Name: Gross Polowy LLC
Address: 1775 Wehrle Drive, Suite 100, Williamsville, NY 14221
Telephone: (716) 204-1700
Email: info@grosspolowy.com
Signature/Date: 3/23/26

C. To Be Completed by Purchaser

Name:
Address:
Telephone:
Email:
Signature/ Date: 3/23/26

Additional Copies of this Form can be found at https://www.nycourts.gov/forms/foreclosure/

Rev. 12/19